

C. CONCLUSION

Based on the foregoing, the Court finds that the Arbitration Agreements are unconscionable, and therefore unenforceable. For this reason, the Motion is DENIED.

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25 Executive, LLC v. Julie Nguyen

25CV002614

[1] CROSS-DEFENDANTS’ DEMURRER TO, AND MOTION TO STRIKE PORTIONS OF, FIRST AMENDED CROSS-COMPLAINT

TENTATIVE RULING: The present demurrer and motion to strike are MOOT. The Court grants Ms. Nguyen five (5) Court days’ leave to file and serve the Second Amended Cross-Complaint filed as Attachment A to her August 10, 2026 Memorandum of Points and Authorities (“August 10 Proposed SACC”) with the Court. Cross-Defendants may respond to the August 10 Proposed SACC consistent with California law.

Ms. Nguyen is advised she must file the August 10 Proposed SACC in the form submitted to the Court on August 10, 2026 without modification. Moreover, moving forward, Ms. Nguyen must receive leave of Court before filing amendments to her pleadings.

Cross-Defendants 25 Executive, LLC, Jeremy Sill, Jesse Van Coutren, Michael Holcomb, and Strong & Hayden (“Cross-Defendants”) demur, pursuant to Code of Civil Procedure sections 430.10, subdivisions (e) and (f),³ to the First Amended Cross-Complaint (“FACC”) of Julie Nguyen (“Nguyen”). Cross-Defendants further move, pursuant to Code of Civil Procedure sections 435 and 436, subdivision (a), for an order striking the following portions of the FACC: (a) Paragraphs 30, 42, and 47, and Prayer Paragraph 2; (b) Paragraphs 30, 42, and 47, and Prayer Paragraph 2; (c) Prayer Paragraph 7, insofar as it seeks attorney’s fees; and (d) and all allegations and requests for relief seeking recovery for injuries.

Rather than opposing the Demurrer and Motion to Strike, on July 22, 2026, Nguyen filed a purported 10-page Second Amended Cross-Complaint (“July 22 SACC”).

“A party may amend its pleading once without leave of the court at any time ... after a demurrer or motion to strike is filed but before the demurrer or motion to strike is heard if the amended pleading is filed and served no later than the date for filing an opposition to the demurrer or motion to strike. A party may amend the pleading after the date for filing an opposition to the demurrer or motion to strike, upon stipulation by the parties.” (§ 472, subd. (a) (Section 472).) That section, however, cannot be relied upon by a party to *further* amend an already amended pleading. (*Hedwall v. PCMV, LLC* (2018) 22 Cal.App.5th 564, 575 [“under section 472, the right to amend a cross-complaint as a matter of right is...limited to the original version of the cross-complaint”.])

³ All subsequent statutory references are to the Code of Civil Procedure unless otherwise specified.

Nguyen filed a First Amended Cross-Complaint (“FACC”) on April 23, 2026. Pursuant to the holding in *Hedwall*, Section 472 does not provide Nguyen the right to further amend the operative cross-complaint without leave of court. Because Nguyen did not obtain the Court’s leave to file the July 22 SACC, it was not filed in conformity with the law and is subject to being struck from the record on the Court’s own motion. (See § 436.)

By Minute Order dated August 4, 2026, the Court continued the matter, noted the foregoing, and ordered Nguyen to serve and file a Memorandum and Declaration in support of her July 22 SACC, pursuant to Rules of Court, rule 3.1324, subdivision (a) related to motions for leave to amend a complaint. The Court noted that, if the July 22 SACC reflected a good faith effort by Nguyen to address the deficiencies urged by Cross-Defendants through the instant Demurrer and Motion to Strike, even if Cross-Defendants believed that it does not adequately address those deficiencies, the Court would be inclined to permit it to remain the operative cross-complaint, grant Cross-Defendants additional time to respond thereto, and find the present Demurrer and Motion to Strike moot.

The Court’s August 4, 2026 order inadvertently failed to acknowledge that, on July 31, 2026, Nguyen had filed a Motion for Leave to File Revised Second Amended Cross-Complaint, to which she attached, as Exhibit A, a proposed 12-page Revised Second Amended Cross-Complaint (“July 31 proposed SACC”).

In response to the August 4, 2026 Order, Nguyen timely filed a supplemental Memorandum and Declaration. However, rather than addressing her July 22 SACC as ordered, Nguyen addressed and attached, as Exhibit A, a 14-page Revised Second Amended Cross-Complaint (“August 10 Proposed SACC”). She states that the August 10 proposed SACC is necessary and proper to address the demurrer and motion to strike and explains how. (See 8/10/26 Declaration of Julie Nguyen, ¶¶ 3-4.) While addressed to the improper SACC, it appears Nguyen is attempting to make good faith efforts to address the deficiencies urged by Cross-Defendants through the instant Demurrer and Motion to Strike.

Cross-Defendants timely filed their Sur-Reply, in which they correctly note the procedural irregularity of Nguyen not responding to the July 22 SACC and, instead, proposing another version of a cross-complaint. As Cross-Defendants contend, the immediate issue for the Court at this point is to determine a single operative pleading, not on the substance of the present demurrer and motion to strike, but as a procedural matter so that the operative cross-complaint is settled and not a moving target.

Cross-Defendants assert that “[i]f the Court is inclined to permit Nguyen to proceed on the [August 10 Proposed SACC], Cross-Defendants respectfully request that the Court designate that specific pleading as operative, require prior leave of Court for any further amendment, and afford Cross-Defendants the ordinary opportunity to meet and confer and respond.” (8/18/26 Sur-Reply, 2:25-3:2.) The Court agrees with Cross-Defendants that their proposed course of action furthers the purpose underlying the Court’s August 4, 2026 Order.

To resolve the procedural conundrum caused by the multiple iterations of Ms. Nguyen’s SACC, the Court grants Ms. Nguyen five (5) Court days leave to file and serve the August 10

Proposed SACC. This document must be in the same form as that attached as Exhibit A to Ms. Nguyen's August 10, 2026 filing. Cross-Defendants shall respond to the newly filed Second Amended Cross-Complaint in the ordinary course.

[2] MOTION FOR LEAVE TO FILE REVISED SECOND AMENDED CROSS-COMPLAINT [Filed 7/31/26]

TENTATIVE RULING: Plaintiff's Motion for Leave to file Revised Second Amended Cross-Complaint is MOOT. In its concurrent ruling on Cross-Defendants' Demurrer and Motion to Strike Portions of First Amended Cross-Complaint, the Court detailed the procedural irregularity arising from the uncertainty of the operative cross-complaint. In an effort to resolve that irregularity, the Court has allowed Ms. Nguyen leave to file her fourteen-page proposed Second Amended Cross-Complaint, filed as Attachment A on August 10, 2026.

****at 9:30 a.m.****

Sofi Lending Corp. v. Lakesha Smith Williams

25CV001810

PLAINTIFF'S MOTION FOR SUMMARY JUDGMENT OR IN THE ALTERNATIVE
SUMMARY ADJUDICATION

TENTATIVE RULING: The motion is GRANTED.

The moving party fails to include, in the notice of this motion, the current version of the Tentative Ruling notice required by Local Rule 2.9, effective 1/1/26. The current version allows a party or counsel to request a hearing by calling the Court or emailing the Court, at JudicialReception2@napa.courts.ca.gov and providing specified information set out in Local Rule 2.9. The moving party is therefore directed to immediately provide, by telephone call AND email, the current Tentative Ruling notice explicitly required by Local Rule 2.9 to opposing party/ies forthwith. The requirements for requesting oral argument under Local Rule 2.9 remain in effect. However, the Court may grant belated requests for oral argument or continuance of hearing, made by any party who represents it did not timely receive the required notice, regardless of whether or not moving party is present at the hearing.

Plaintiff SoFi Lending Corp. as Attorney-in-Fact for Santander Bank, N.A. ("Plaintiff"), moves, pursuant Code of Civil Procedure section 437c, for an order entering summary judgment in favor of Plaintiff and against Defendant Lakesha Smith Williams ("Defendant") or in the alternative for an order entering summary adjudication in favor of Plaintiff and against Defendant.

"A party may move for summary judgment in an action or proceeding if it is contended . . . that there is no defense to the action or proceeding." (Code Civ. Proc., § 437c, subd. (a)(1).) "A plaintiff . . . has met that party's burden of showing that there is no defense to a cause of action if that party has proved each element of the cause of action entitling the party to judgment on the cause of action. Once the plaintiff . . . has met that burden, the burden shifts to the